

	Reasonable Rate	Reas. Hours	Amount
Benjeman Beck	\$450	62.2	\$27,990
Misoo Choi Kimbal	\$350	19.3	\$6,755
De Los Santos	\$100	12	\$1,200
TOTAL			\$35,945

Plaintiff also requests a 1.5 multiplier. "The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased." (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247.) "The trial court is neither foreclosed from, nor required to, award a multiplier. [Citations.]" (*Ibid.*) The Court does not find a multiplier warranted in this instance and **DENIES** the request for a multiplier.

Plaintiff also request an award of costs in the amount of \$3,097.87. FCA does not oppose the request for costs and therefore the request is **GRANTED**.

In total, the Motion is **GRANTED**, in part, and a total of \$39,042.87 is awarded as fees and costs (\$35,945 + \$3,097.87).

Counsel for Plaintiff is to give notice of this ruling.

2 Green v. Cleeland

The unopposed Motion for Discovery and Monetary Sanctions filed by plaintiff Michele Green is GRANTED in part and DENIED in part, as set forth herein.

Pursuant to Code Civ. Proc. § 2023.010(d), failing to respond to an authorized method of discovery is a misuse of the discovery process warranting sanctions. So, too, is disobeying a court order to provide discovery. (Code Civ. Proc. § 2023.010(g); *Van Sickle v. Gilbert* (2011) 196 Cal. App. 4th 1495, 1516.) Imposition of sanctions for misuse of discovery lies within the trial court's discretion. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 991.) Once a party is ordered by the court to provide responses to discovery, continued failure to respond may result in the imposition of more severe sanctions. (See Code Civ. Proc. §§ 2030.290(c) (interrogatories), 2031.300(c) (requests for production).)

Disobeying a court order to provide discovery is a misuse of the discovery process. Cal. Civ. Proc. Code § 2023.010(g); *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.

The moving party need only show the failure to obey the court's earlier discovery orders. Thereafter, the burden of proof shifts to the party seeking to avoid sanctions to establish a satisfactory excuse for his or her conduct. (*Corns v. Miller* (1986) 181 Cal. App. 3d 195, 201; *Puritan Ins. Co. v. Sup.Ct. (Tri-C Machine Corp.)* (1985) 171 Cal. App. 3d 877, 884.)